

representation by the landlord about condition of the premises was not justifiable.

In the SAC, plaintiffs add little in the way of specific additional facts that would elevate the 2023-2024 moisture and mold issues to fraud or misrepresentation issues as far back as 2014.

While plaintiffs allege that defendant misrepresented the problem was “resolved and that the Subject Premises were habitable,” they admit to moving out because the problem persisted. This demonstrates a lack of reliance, not its existence.

The SAC fails to sufficiently allege the misrepresentations, as well as the how, when, where, and by what means they were tendered. The pleading must answer each of these questions for each specific representation alleged. Because the basis on which fraud is alleged is unclear, the cause of action is also uncertain.

The eighth cause of action for negligent misrepresentation is subject to the same analysis because the standard for pleading negligent misrepresentation only differs from fraud in that it does not require knowledge of falsity. (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1252.)

The demurrer to the seventh and eighth causes of action is **sustained**.

IV. Motion to Strike

The Court *may*, upon a motion to strike by defendant: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or from a matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a).) In ruling on motion to strike, courts do not read allegations in isolation, but rather as a whole, all parts in their context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendant landlord moves to strike paragraphs 126, 127, 128, 129, and 130 of the SAC on the basis that they violate Code of Civil Procedure, § 425.10 (b), which states that “the amount demanded shall not be stated” in a complaint for personal injury or wrongful death.

Plaintiffs, in response, argue about punitive damages and whether the SAC contains sufficient facts to justify them. They mention only once, in a conclusory statement, that “the challenged prayer allegations are entirely proper.” The arguments are not on point and are irrelevant to whether a plaintiffs are statutorily prohibited from mentioning specific dollar amounts in the SAC’s prayer for relief. It appears such specific dollar amounts are improper.

Accordingly, the motion to strike is **granted** without leave to amend.

14. 9:00 AM CASE NUMBER: C25-00110

CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI

HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 2ND AMENDED COMPLAINT

FILED BY: MIZIRAWI, SAMMY

TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
HEARING ON SUMMARY MOTION -INTERVENOR, SCOTTSDALE INSURANCE COMPANY
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Intervenor Defendant Scottsdale Insurance Company's ("Scottsdale") Motion for Summary Judgment or in the alternative Adjudication ("MSJ"), or in the alternative summary adjudication to Plaintiffs' Second Amended Complaint ("SAC").

The MSJ/A attacks all three causes of action in the SAC: (1) First Cause of Action for PUBLIC INJUNCTION REGARDING UNLAWFUL, UNFAIR, AND PROHIBITED ACTS AND PRACTICES IN VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200, et seq. AND §§ 17550, et seq.; (2) Second Cause of Action for CALIFORNIA CLASS ACTION FOR UNLAWFUL, UNFAIR, AND PROHIBITED ACTS AND PRACTICES IN VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200, et seq. AND §§ 17550, et seq.; and (3) Third Cause of Action for CALIFORNIA AND NATIONWIDE CLASS ACTIONS FOR BREACH OF CONTRACTS.

For the following reasons, Defendant Scottsdale's MSJ is **denied**, Defendant Scottsdale's Motion for Summary Adjudication to Plaintiff's first cause of action for Public Injunction is **granted**.

Defendant Scottsdale Insurance Company's Request for Judicial Notice

Scottsdale requests that the Court take judicial notice of the documents listed below as Exhibits 14 through 18 because the following are official acts and records of the California Secretary of State. (Evid. Code §§ 452(c)-(d), (g).) Scottsdale cites Friends of Shingle Springs for the proposition that the Court took judicial notice of certificate of status issued by the Secretary of State, which reflected suspensions of corporation. (*Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1478 fn. 6.)

Scottsdale describes Exhibits 14 through 17 as Statement of Information and screenshots of the California Secretary of State website regarding the licenses of both JusTours and JusCollege. The **Court grants judicial notice of Exhibits 14 through 17.**

Plaintiffs objected to judicial notice of Exhibit 18. Scottsdale failed to describe Exhibit 18 in its papers and the **Court denies judicial notice of Exhibit 18.**

Exhibit 36 is a Notice to Court of Suspension of Corporate Status in this action filed on May 2, 2024, in this action. The Court under California Evidence Code, § 452(d), is authorized to take judicial notice of its own files and records. (*People v. Duran* (2002) 97 Cal.App.4th 1448, 1460 [judicial notice of official court records includes computer-generated records].) The **Court grants judicial notice of Exhibit 36.**

Plaintiffs' Request for Judicial Notice

Plaintiffs requests judicial notice of three of Defendant JusTours filings with the USPTO labeled as Exhibits 16 through 18.

The documents requested for judicial notice are official records created and maintained by the USPTO

in the course of its official duties administering the federal patent and trademark systems. These records are publicly accessible through the USPTO's official website and represent official acts of a United States executive agency. "Materials in the online files of the USPTO and other matters of public record are proper subjects of judicial notice." (*Threshold Enters. v. Pressed Juicery, Inc.* (N.D. Cal. 2020) 445 F.Supp.3d 139, 145; See also Evid. Code § 452(c).)

Plaintiffs' requests for judicial notice for **Exhibits 16 through 18 are granted.**

Factual Background

A. Facts Supporting Cannon's Causes of Action

On May 7, 2019, Cannon received an email from contact@juscollege.com to confirm that her Cabo trip was booked and it would cost \$999.00. The email lists a total of 7 payments totaling \$850.00. The email then includes the following information: Email: contact@juscollege.com Phone: 1-(855)-458-7225 JusTours, Inc., Auth. # 201806858, 1209 Orange St, Wilmington, 19801, Delaware." (emphasis added). On May 9, 2019, Cannon forwards this email to Susan Cannon stating "here's some of my info." (UMF 1.) On June 6, 2019, contact@juscollege.com emailed Cannon a receipt for her payment of \$90.00 on the same date and to advise of her that her next payment of \$150.00 is due on June 25, 2019. (UMF 2.)

On November 5, 2019, contact@m.juscollege.com emailed Cannon to advise her to get her passport ready for her Cabo trip. (UMF 3.) On November 21, 2019 contact@m.juscollege.com emailed Cannon to advise that hotel "room filling" is open and that she must fill her hotel room. (UMF 4.) On February 23, 2020, contact@m.juscollege.com emailed Cannon to provide her with information about her Cabo trip and events available through other companies during her trip. (UMF 5.) On February 28, 2020, contact@m.juscollege.com emailed Cannon to confirm her hotel accommodations for her Cabo trip at the Medano hotel with an arrival date of March 29, 2020. (UMF 6.)

On March 12, 2020, contact@m.juscollege.com emailed Cannon to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise that her Juscollege believes that their destinations are among the "safest in the world." (UMF 7.) However, on March 16, 2020, contact@m.juscollege.com emailed Cannon to advise that her Cabo trip had to be cancelled due to the worldwide pandemic, and that Juscollege will be in contact with her about further details. (UMF 8.)

On Tuesday April 14, 2020, contact@m.juscollege.com emailed Cannon to advise that her Cabo trip had to be cancelled due to the worldwide pandemic and "to confirm we have been able to postpone your 2020 Cabo, Mexico Spring Break trip to 2021." Cannon was advised that she will be receiving 100% credit to cover the 'land' portion of next year's trip and 100% credit from the airline for the 'flight' portion of your trip this year. On April 28, 2020, contact@juscollege.com sent an email reminding her of the cancellation of the Cabo trip and her credits. (UMF 9.)

On May 15, 2020, contact@m.juscollege.com emailed lindseyc343@gmail.com to advise that she has a \$601.62 credit on Alaska Airlines. (UMF 10.) The email advises that Cannon must book a new flight by March 21, 2021, or she will lose the airline credits. The email also states that "we hope you and your families are staying safe during this worldwide pandemic, and we appreciate your patience." The email further advises that trips in 2020 are not feasible and that "[b]elow you will find your voucher to redeem the equivalent 2021 Land package for the trip you were due to experience in Cabo, Mexico staying at The Medano or a similar accommodation." The email further provides a list of five (5) additional trips from which Cannon can choose from. (Id.) On August 12, 2020, Cannon's counsel

(Steve Elster) wrote to Citores of “JusTours/Juscollege” to demand a refund of Cannon’s payments for her Cabo trip in the amount of \$899.00. (UMF 11.)

B. JusTours and JusCollege

In corporate filings with the California Secretary of State, JusTours filed its initial statement and designation with the California Secretary of State on August 29, 2019, and was located in Las Vegas, Nevada. (UMF 12, 37, 56 and 92.) JusTours’ license to practice business in California was forfeited on April 2, 2024. (UMF 13, 38, 57 and 93.) On May 2, 2024, JusTours filed a Notice to Court of Suspension of Corporate Status in this action. (UMF 14, 39, 58, and 94.)

Juscollege filed its initial statement and designation with the California Secretary of State on February 7, 2011, and was located in Menlo Park, California. (UMF 15, 40, 59, and 95.) Juscollege’s license to practice business in California was forfeited on July 25, 2018. (UMF 16, 41, 60, and 96.) JusCollege has an active website (<https://www.juscollege.com/terms-and-conditions>) which contains a “Terms and Conditions” page that states “CVJV, LLC dba JusCollege Terms of Service,” and that “[t]hese are the Services Terms for CVJV, LLC dba JusCollege (referred to as “we”, “us”, or “our”). We are a limited liability company formed under Delaware law. (UMF 17, 42, 61, and 97.)

C. JusTours’ Terms of Service

Cannon produced a Terms of Service Agreement (“Terms of Service”) that is undated, unsigned and does not include an http address. Nonetheless, assuming that Cannon agreed to such Terms of Service with JusTours, she released all claims. The terms “Supplier” in the Terms of Service includes, but is not limited to, suppliers of air, water, rail and ground transportation, hotels and other accommodations. The Cabo trip was cancelled by Alaska Airlines due to the government shut-down as a result of the Pandemic. (UMF 20, 64, and 100.) As such, even if booked through JusTours’ website, this “cancellation” is covered by the broad release in JusTours’ Terms of Service. Cannon received a \$601.00 flight credit from Alaska Airlines. (Id.)

D. Cannon’s Discovery Responses

During discovery in this action, Scottsdale served Cannon with interrogatories, and she admitted in her responses to those interrogatories that she contracted with “JusCollege”. (UMF 21, 65, and 101.) Specifically, Cannon states that, “[i]n approximately May 2019, Cannon contracted with JusCollege for air transportation and other travel services, including accommodations at a hotel in Cabo San Lucas, Mexico, scheduled for March and April 2020. Plaintiff paid Defendant in full via a series of payments totaling approximately \$900.00 between May 2019 and January 2020. JusCollege breached the contract by failing to provide the air transportation and travel services paid for. Furthermore, JusCollege breached the contract by failing to refund Cannon the money she paid after failing to provide the services, despite Plaintiff requesting a refund.” (Id.) Likewise, in Cannon’s responses to form interrogatories, she admits that she had a contract with JusCollege, and does not identify any contract with JusTours. (UMF 22, 66, and 102.)

In addition, Scottsdale served Cannon with requests for production of documents in which it specifically requested her contract with JusTours and all evidence supporting her claims against JusTours. (UMF 23, 67, and 103. However, consistent with her responses to special interrogatories, Cannon only produced evidence of a contract with JusCollege, not JusTours. (Id.)

E. Facts Supporting Bautista’s Causes of Action

On November 8, 2019, contact@juscollege.com emailed Bautista to confirm that her Cancun trip was

booked and (UMF 24, 68, 104.) On March 3, 2020, JusCollege (contact@m.juscollege.com) emailed Bautista to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise that her Juscollege believes that their destinations are among the “safest in the world.” (UMF 25, 69, and 105.) On March 12, 2020, contact@m.juscollege.com emailed Bautista to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise travel restrictions will not impact her trip. (UMF 26, 51, 69.) That same day, contact@m.juscollege.com emailed Bautista to acknowledge that some customers wanted to cancel their trips and that Juscollege was working on options. (UMF 27, 71, and 107.)

However, on March 16, 2020, contact@m.juscollege.com emailed Bautista to advise that her Cabo trip had to be cancelled due to the worldwide pandemic, and that Juscollege will be in contact with her about further details. (UMF 28, 72, and 108.) On March 31, 2020, contact@m.juscollege.com emailed Bautista to advise that her that Juscollege will be in contact with her about further details about a solution for her trip. (UMF 29, 73, 109.) On April 14, 2020, contact@m.juscollege.com emailed Bautista to advise that her that due to the cancellation of her trip, she will be receiving 100% flight and hotel credits for future travel. (UMF 30, 74, and 110.)

On December 22, 2020, JusCollege (contact@m.juscollege.com) emailed Bautista to advise that her of her travel credits and providing options for other trips she could choose from. (UMF 31.) On December 26, 2020, Bautista emailed JusCollege to request a refund. (UMF 32, 76, 112. On December 22, 2020, contact@m.juscollege.com emailed Bautista to advise that her that she would not be provided with refund but could use her travel credits to select a different trip. (UMF 33, 77, and 113.)

F. Bautista’s Discovery Responses

On April 24, 2026, Bautista served responses to Scottsdale’s discovery requests in which she admitted that that she contracted with “JusCollege”. (UMF 34, 78, and 114.) Specifically, Bautista states that, “[i]n approximately November 2019, Plaintiff contracted with JusCollege for air transportation and other travel services, including accommodations at a hotel in Cancun, Mexico, scheduled for March 2020. Plaintiff paid Defendant in full via a series of payments totaling approximately \$1,449.00 between November 2019 and January 2020. JusCollege breached the contract by failing to provide the air transportation and travel services paid for. Furthermore, JusCollege breached the contract by failing to refund Plaintiff the money she paid after failing to provide the services, despite Plaintiff requesting a refund.” (Id.)

Bautista also served responses to form interrogatories in which she confirmed she contracted with JusCollege for her Cancun trip. (UMF 35, 79, and 115.) In addition, Bautista produced evidence of a contract with JusCollege in the form of emails, but not JusTours. (UMF 36, 80, and 116.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the

cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

In ruling on a summary judgment motion, the Court must “accept as true the facts . . . in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them” and “must view the evidence in the light most favorable to plaintiff as the losing party and liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.)

Analysis

Breach of Written Contract

“A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

JusTours and JusCollege

Scottsdale argues that Plaintiffs did not have a contract with JusTours, and therefore, JusTours could not and did not breach a contract, or cause Plaintiff's alleged damages. The documentary evidence Plaintiffs produced to establish their claims demonstrate that they booked their travel with JusCollege, not JusTours. The emails confirming Plaintiffs' flight credits after the Cabo trip was cancelled due to the Pandemic were also with JusCollege. The only connection between Plaintiffs and JusTours is Cannon's production of JusTours' Terms and Conditions of Use from JusTours' website. However, this is insufficient to establish a contract between Plaintiffs and JusTours.

Plaintiffs first rebuttal is that JusCollege, Inc. was not even licensed to practice business in California when Plaintiffs contracted for travel services. [AUMF 16] Scottsdale itself recognizes that the lack of a business license leaves a company “unable to conduct business in the State of California.” [MSJ 20:25]

Plaintiffs second rebuttal is that the written discovery responses they received referred to Defendant JusTours as JusTours, Inc., dba JusCollege as “JusCollege,” they were referring to the entity JusTours, Inc. dba JusCollege. (AUMF 14.) “JusCollege” does not exist as a separate legal entity. “The designation of ‘DBA’ or ‘doing business as’ simply indicates [a corporation] operates under a fictitious business name. Use of a fictitious business name does not create a separate legal entity. ... [T]he designation DBA means ‘doing business as’ but is merely descriptive of the person or corporation who does business under some other name.” (*Pinkerton's, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.) “[T]here is no legal distinction between [a corporation] and its fictitious business name.” ((*Id.*) at 1347.)

Plaintiffs' present evidence that both JusTours and JusCollege is the same entity. Emails confirmed the details of Plaintiffs' trip came from the email that JusTours, Inc. identified in its Terms as its email (contact@juscollege.com). (AUMF 1.) JusTours, Inc. identified its website at www.juscollege.com, both in its Terms and to the USPTO. (AUMF 2-3.) Emails confirming the details of Plaintiffs' trips either identify the sender as JusTours, Inc. or identify the sender's location as that of JusTours, Inc. at 2470 Paseo Verde Parkway, Henderson, Nevada. (AUMF 4- 6.)

Plaintiffs' have established dispute of material facts whether they contracted with Defendant JusTours.

Waiver in JusTours' Terms of Service

It cannot be disputed that the Pandemic and resulting travel restrictions were "arising out of things out of JusTours control." It is well settled that, a written release extinguishes any obligation covered by the release's terms, provided it has not been obtained by fraud, deception, misrepresentation, duress, or undue influence. (*Skrbina v. Fleming Companies* (1996) 45 Cal.App.4th 1353, 1366.) "Release, indemnity and similar exculpatory provisions are binding on the signatories and enforceable so long as they are clear, explicit and comprehensible in each of their essential details. Such an agreement, read as a whole, must clearly notify the prospective releasor or indemnitor of the effect of signing the agreement." (*Powers v. Superior Court* (1987) 196 Cal.App.3d 318, 320.) "To be effective, a release need not achieve perfection; only on Draftsman's Olympus is it feasible to combine the elegance of a trust indenture with the brevity of a stop sign." (*National & Internat. Brotherhood of Street Racers, Inc. v. Superior Court* (1989) 215 Cal.App.3d 934, 938.)

Scottsdale contends that Plaintiffs "cancellation" of their trips is covered by the broad release in Justours' Terms of Service. The release broadly states that, "You hereby release JusTours of all claims arising out of things out of JusTours control." (UMF 21-24.)

Browse Wrap

Plaintiffs argue the Court has already decided in the Ruling on the Motion to Compel Arbitration that that all the provisions in the Terms, including any purported waivers or releases are "unenforceable because of the lack of assent or agreement by plaintiff to it." (AUMF 20.)

Scottsdale in their Reply takes that position that Plaintiffs' argument is inapplicable because the current motion does not address any Arbitration Agreement and the Terms of Service was emailed to them after the transaction took place. (Reply at p. 5: 3-19.) This argument contradicts the Court's analysis in its Ruling on the Motion to Compel Arbitration.

The Court held that the browse wrap agreement is unenforceable because the lack of assent or agreement by Plaintiff. (AUMF 20 at p. 2.) Lack of assent is not a defense specifically for Arbitration Agreements but a general contract defense that applies to the breach of contract cause of action here.

Civil Code section 3513

Civil Code section 3513 states, "Any one may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement."

Plaintiffs point out that, "The seller of travel has an obligation either to provide the air or sea transportation or travel services purchased by the passenger or to make a refund as provided by this section." (Bus. & Prof. Code, § 17500.14(a).)

JusTours' browse wrap Terms which precludes consumer refunds of travel, directly contradicts the express statutory requirements of Business and Professions Code section 17550.14 which mandates that a seller refund purchased travel services not provided. A "law established for a public reason cannot be contravened by a private agreement." (*McGill v. Citibank* (2017) 2 Cal.5th 945, 964; quoting Civ. Code § 3513.)

JusTours' waiver agreement is not enforceable because it violates of Civil Code section 3513.

Violation of Business and Professions Code § 17200 and § 17550

Contract with JusTours

Scottsdale contends that since the only alleged wrongful business practice by Justours identified by Plaintiffs is the alleged breach of contract by Justours, but Justours did not have a contract with Plaintiffs and therefore, did not breach a contract with Plaintiffs. (MSJ at p. 18: 14-16.)

As explained above, Plaintiffs have shown dispute of material facts whether they contracted with Defendant JusTours.

Adequate Legal Remedies Do Not Preclude Business and Professions Codes Cause of Action

Scottsdale argues that Plaintiffs' UCL and section 17550 claims fail because Plaintiffs have an adequate remedy at law "in the form of a cause of action for breach of contract." (MSJ 19:3-5.) That is not the rule governing California's statutory unfair competition remedies.

The UCL defines unfair competition broadly to include "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code § 17200.) "Unless otherwise expressly provided, the remedies or penalties provided by this chapter are cumulative to each other and to the remedies or penalties available under all other laws of this state." (Bus. & Prof. Code § 17205; see also *Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 179.)

Injunctive Relief Under Business and Professions Codes are Not Moot

Business and Professions Code section 17200 is a remedial statute that is not limited to future-facing injunctions; it authorizes courts to enjoin unfair competition and to make orders necessary "to restore to any person in interest any money or property" acquired by means of unfair competition. (Bus. & Prof. Code § 17203.) Section 17204 likewise permits a private UCL action by a person who "has suffered injury in fact and has lost money or property as a result of the unfair competition." (Bus. & Prof. Code § 17204.) Thus, even if a defendant could narrow or defeat one form of prospective injunctive relief, that would not dispose of a UCL claim supported by evidence of lost money or property because of violations of unfair competition or the Sellers of Travel law. (Bus. & Prof. Code § 17550.14.)

Plaintiffs do not dispute the narrow equitable principle that an injunction should not be issued as punishment for past conduct alone. But Scottsdale seeks a broader ruling: elimination of the entire Business and Professions Code claim. Scottsdale's argument does not establish that all claims under Business and Professions Code section 17200 and 17550 are moot.

Public Injunction

Plaintiffs' first cause of action for public injunction is duplicative of the second cause of action because a public injunction is a possible remedy of the second cause of action for violation of Business and Professions Code § 17200 and § 17550 and Plaintiffs admit it in their opposition. (Opposition at p. 14: 4-5.) Summary adjudication is granted for this cause of action.

Conclusion

For the reasons stated above, Defendant Scottsdale's MSJ is denied, Defendant Scottsdale's Motion for Summary Adjudication to Plaintiff's first cause of action for Public Injunction is granted.

Evidentiary Objections

The Court need only rule on those objections to evidence that are material to the disposition of the

MSJ. (See CCP § 437c(q).)

Scottsdale's Objections

OBJ 3: Elster Decl. ¶ 8 and Exhibits 16 to 18. **Overruled.** See Plaintiff's RJN.

16. 9:00 AM CASE NUMBER: MSL21-01934

CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.

HEARING ON MOTION IN RE: CONTINUE TRIAL AND FOR TOLLING OF 5-YEAR STATUTE

FILED BY: CANNON, LINDSEY

TENTATIVE RULING:

Introduction

Before the Court is , Plaintiffs Lindsey Cannon and Janine Bautista ("Plaintiffs")'s Motion to Continue Trial and Toll the Five-Year Rule under Code of Civil Procedure section 583.310. The motion is opposed by Defendant Intervenor Scottsdale Insurance Company.

For the following reasons, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are **granted**. Parties are ordered to appear to discuss a new trial date.

Factual Background

This action arises from a contract dispute between Lindsey Cannon ("Cannon" or "Plaintiff") and Janine Bautista ("Bautista" or Plaintiff) ("Cannon" and "Bautista" are collectively referred to as "Plaintiffs") and Defendant "JusTours, Inc., a Delaware Corp. dba JusCollege" ("Justours" or "Defendant"). Cannon commenced this action on September 3, 2021. Cannon alleges that from May, 2019 to January, 2020, she paid \$900 to JusTours for air transportation and hotel accommodations in Cabo San Lucas, Mexico ("Cabo trip"). Cannon further alleges that JusTours failed to provide the air transportation and other travel services for which Cannon paid JusTours. Cannon contends that she requested a refund from JusTours on or about August 12, 2020, but JusTours failed to provide her with a refund.

Procedural History

Complaint

In her initial complaint, Cannon sought a public injunction pursuant to California Business and Professions Code § 17200, et seq: (a) Defendant from committing future violations of Business & Professions Code § 17550; (b) requiring Defendant to comply with Business & Professions Code § 17550.14; and (c) establishing an effective monitoring mechanism to ensure Defendant's compliance with the injunction. (See, Docket Entry on 9/3/21.)

First Amended Complaint

On May 4, 2023, Cannon filed a First Amended Complaint ("FAC"), alleging causes of action for (1) public injunction regarding unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; (2) California class action for unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; and (3) California and nationwide class action for breach of contract. (See, Docket